

THOMAS, J., concurring

about the original understanding of double jeopardy rights, an argument that we have found wanting.

Insofar as the expansion of the reach of federal criminal law has been questioned on constitutional rather than policy grounds, the argument has focused on whether Congress has overstepped its legislative powers under the Constitution. See, *e. g.*, *Gonzales v. Raich*, 545 U. S. 1, 57–74 (2005) (THOMAS, J., dissenting). Eliminating the dual-sovereignty rule would do little to trim the reach of federal criminal law, and it would not even prevent many successive state and federal prosecutions for the same criminal conduct unless we also overruled the long-settled rule that an “offence” for double jeopardy purposes is defined by statutory elements, not by what might be described in a looser sense as a unit of criminal conduct. See *Blockburger v. United States*, 284 U. S. 299 (1932). Perhaps believing that two revolutionary assaults in the same case would be too much, Gamble has not asked us to overrule *Blockburger* along with the dual-sovereignty rule.

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The judgment of the Court of Appeals for the Eleventh Circuit is affirmed.

It is so ordered.

JUSTICE THOMAS, concurring.

I agree that the historical record does not bear out my initial skepticism of the dual-sovereignty doctrine. See *Puerto Rico v. Sánchez Valle*, 579 U. S. 59, 78–79 (2016) (GINSBURG, J., joined by THOMAS, J., concurring). The founding generation foresaw very limited potential for overlapping criminal prosecutions by the States and the Federal Government.¹ The Founders therefore had no reason to address

¹ As the Court suggests, Congress is responsible for the proliferation of duplicative prosecutions for the same offenses by the States and the Federal Government. *Ante*, at 710. By legislating beyond its limited powers, Congress has taken from the People authority that they never gave. U. S.